

Contentious Chamber

Decision on the merits 58/2024 of April 22, 2024

File number: DOS-2022-02599

Subject: lack of follow-up on a request for access to a vehicle reading report

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Dirk Van Der Kelen and Frank De Smet, members;
Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by Master A. VANBETS, hereinafter referred to as "the complainant";

The defendant:

Y, represented by Master S. PAPEN, hereinafter referred to as "the defendant"

Decision on the merits 58/2024 — 2/14

I. Facts and procedure

1.

On June 21, 2022, the complainant submitted a request for mediation to the Data Protection Authority, processed by the Frontline Service. This mediation request is addressed to garage Y (hereinafter: the defendant). The mediation request was declared admissible by the Frontline Service on June 24, 2022.

2.

On the same day, the mediation request was transmitted to the defendant via the email address [...]. This is the email address already used by the complainant in his contacts with the defendant and is also mentioned on the website.

On July 18, 2022, a reminder was sent, in the absence of a response from the defendant.

On August 8, 2022, the Frontline Service informed the complainant of the lack of response and that consequently, it converted his mediation request into a complaint.

3.

On August 9, 2022, the complaint was declared admissible by the Frontline Service based on Articles 58 and 60 of the LCA and the complaint was transmitted to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

4.

The subject of the complaint concerns the exercise of the right of access by the complainant who requested the data controller to provide him with the entirety of the diagnostic report along with the freeze frame data related to his vehicle in the context of an expertise.

On June 2, 2022, an expertise was conducted on the complainant's vehicle at the defendant's premises. The expert present during the expertise subsequently requested the entirety of the diagnostic report along with the complainant's freeze frame data. The complainant attempted to obtain it from the defendant via the general email address [...], but encountered a refusal due to an internal administrative rule of Z. The expert specifies in a letter that he cannot establish an interim report without the requested information. He will need the reading report with the freeze frame data for this purpose. According to him, this data can also be accessed through a direct reading, but in the meantime, the defendant has deleted the active incidents, which no longer allows him to consult this data himself. He adds that manufacturers are obliged to keep technical data available so that repairers

not part of the manufacturer's network can also carry out maintenance and repairs.

5.

On June 15, 2022, the complainant sent an injunction by email, addressed to [...]. In this injunction, the complainant's counsel refers to the GDPR to obtain access. Furthermore, the complainant requests "to be informed of which parts [the defendant] has precisely replaced or wishes to replace, mentioning the part number as well."

1 This refers to the freeze frame data via a simple OBDII reading.

2 See Regulation (EU) No. 461/2010 of the Commission of May 27, 2010, concerning the application of Article 101(3) of the Treaty on the Functioning of the European Union to categories of vertical agreements and concerted practices in the automotive sector (<https://eur-lex.europa.eu/legal-content/FR/ALL/?uri=celex%3A32010R0461>).

Decision on the merits 58/2024 — 3/14

"a detailed account of all planned or executed actions." [Translator's note: all cited passages from the file in this document have been freely translated by the Translation Service of the Data Protection Authority, in the absence of an official translation].

6.

The defendant responds on June 17, 2022, that the requested data cannot be transmitted to the complainant, due to the prohibition on sharing internal documents with third parties outside the Z2 network. However, he provides further explanations regarding the actions taken on the complainant's vehicle.

7.

On September 26, 2022, the Litigation Chamber issues decision 136/2022 which, in accordance with Article 95, § 1, 5° of the LCA, orders the data controller to comply with the request of the data subject to exercise their rights, specifically the right of access (Articles 15.1 and 15.3 of the GDPR), and to provide the complainant with the requested information. Due to a clerical error, this decision was inadvertently addressed to and intended for Z1 (hereinafter: the body shop), whose registered office is located at (address). The initial data controller was indeed the defendant (address). The complainant addressed this entity and the initial mediation request was also sent to them.

8.

On October 27, 2022, the body shop responds to the decision adopted by the Litigation Chamber by requesting a substantive procedure, in accordance with Articles 98 et seq. of the LCA. In this request, the body shop implies that it "disagrees with this decision and requests that the matter be dealt with substantively, under Articles 98 et seq. of the LCA." It further adds that "the substantive treatment has also already been ordered ex officio by Your Litigation Chamber, given that the client has (rightfully) not yet transmitted the requested information to Mr. X." At the same time, the body shop accepts all communications related to the case electronically and expresses its intention to exercise the right to be heard, in accordance with Article 98 of the LCA.

9.

On November 30, 2022, the complainant informs the Litigation Chamber of recent communications with the counsel representing both the body shop and the defendant. On November 2, 2022, the complainant's counsel receives the diagnostic report. On November 14, 2022, the complainant's counsel indicates that the received diagnostic report does not correspond to the requested reading report.

10.

On December 9, 2022, pursuant to Article 99 of the LCA, the concerned parties are also informed by registered mail of the deadlines for submitting their conclusions. This schedule for conclusions is sent to the body shop. Indeed, at this point, the erroneous designation of this body shop as the defendant has not yet been reported to the Litigation Chamber.

Decision on the merits 58/2024 — 4/14

11. The deadline for receiving the 'defendant's' response conclusions has been set for January 20, 2023, the deadline for the complainant's reply conclusions for February 10, 2023, and the deadline for the 'defendant's' reply conclusions for March 3, 2023.

12.

On December 9, 2022, the complainant accepts all communications related to the case electronically.

13.

On January 20, 2023, the Litigation Chamber receives the response conclusions from the body shop regarding the findings related to the subject of the complaint. In its conclusions, it specifies that it has not entered into a contract with the complainant and therefore cannot be considered the data controller within the meaning of Article 4.7) of the GDPR.

14.

On February 10, 2023, the Litigation Chamber receives the reply conclusions from the complainant regarding the findings related to the subject of the complaint. He first emphasizes the delay of the body shop's request, which was submitted on October 27, 2022, one day after the expiration of the appeal deadline. Furthermore, he specifies that in the meantime, a report has indeed been transmitted to him, although at the time of submitting the conclusions, there was still doubt regarding its adequacy. This implies, according to the complainant, that the access request has been satisfied, thus acknowledging the validity of the request.

Finally, the complainant notes that decision 136/2022 mentions the body shop as the defendant rather than the actual defendant. However, he adds that both entities operate under the same business number and that merely contesting the responsibility for processing unnecessarily prolongs the procedure.

15.

On March 2, 2023, the Litigation Chamber receives the reply conclusions from the 'defendant' regarding the findings related to the subject of the complaint.

The body shop clearly establishes in its conclusions that it must be considered a distinct entity from the defendant. They are two different legal entities engaging in different activities. It further emphasizes that the fourteen-day deadline is merely indicative and does not constitute a deadline for forfeiture, to which no sanction is attached. Finally, it indicates that the complainant has already received the diagnostic report from the defendant.

16.

On December 17, 2023, pursuant to Article 99 of the LCA, the previously concerned parties are again informed by registered mail of the new deadlines for submitting their conclusions. This time, it is indeed the defendant who is the recipient and not the body shop. The letter from the Litigation Chamber dated August 17, 2023, states the following:

Decision on the Merits 58/2024 — 5/14

"It should be noted that the conclusions that have already been submitted in the context of this procedure are attached as an annex to this letter. In these conclusions, the attention of the Contentious Chamber is drawn to the fact that Z1 has been erroneously implicated in the case. Based on the elements communicated by the company that was contacted during an initial phase of the procedure, the Contentious Chamber finds that it is not this company that is the defendant. After analyzing this alleged error, the Contentious Chamber finds that it is indeed Y who should be held responsible for the processing. The Contentious Chamber therefore invites Y, as the defendant, to submit its conclusions in accordance with the schedule of conclusions set out below.

In its reply conclusions, the complainant may refer to conclusions that have already been submitted." The deadline for the receipt of the defendant's response conclusions has been set for October 12, 2023, the deadline for the complainant's reply conclusions for November 9, 2023, and the deadline for the defendant's reply conclusions for December 7, 2023.

17.

On October 11, 2023, the Contentious Chamber receives the response conclusions from the defendant. These conclusions are submitted on behalf of both the defendant and the body shop.

18.

It is primarily requested to officially declare a lack of jurisdiction against the body shop. Furthermore, they assert that the Contentious Chamber does not have jurisdiction in a procedure against the defendant, because under Article 811 of the Judicial Code, the Contentious Chamber cannot, ex officio, implicate a third party. Moreover, the defense argues that the complaint did not concern the

defendant. Finally, it is claimed that the complainant must have received the report in question in the meantime. The complaint is therefore moot.

19.

On November 8, 2023, the Contentious Chamber receives the reply conclusions from the complainant. The complainant emphasizes that the complaint was initially addressed to the defendant, implying that the jurisdiction of the Contentious Chamber should not be questioned. Furthermore, he claims that the report received in the meantime is not certainly the requested document, given that the timing of the reading does not match and that a large number of error messages are missing, which the expert needs to complete his expert report.

20. On December 7, 2023, the Contentious Chamber receives the reply conclusions from the defendant. These have again been submitted on behalf of both the body shop and the defendant.

Decision on the Merits 58/2024 — 6/14

21.

In its conclusions, the defendant reiterates that these are two different companies and that in this case, the body shop does not bear responsibility for the processing. The defendant refutes the complainant's argument that the procedure on the merits would be inadmissible by emphasizing that the non-execution of decision 136/2022 automatically initiates a procedure on the merits, as stated in the decision itself.

22.

The defendant further asserts that the current procedure on the merits is abandoned, due to lack of subject matter:

"However, if one aligns with Mr. X's viewpoint that Your Chamber does not have jurisdiction over Z1, it should be noted that the prima facie decision of September 26, 2022, which initiated the current procedure on the merits, has been annulled due to lack of subject matter. In this case, there was indeed no defendant upon whom Your Chamber would have jurisdiction, and it could obviously not issue a prima facie decision either. Based on these elements, if there is no valid prima facie decision, the current procedure on the merits is also abandoned since it is based on the prima facie decision 136/2022 of September 26, 2022. In both scenarios, however, the outcome is the same: Z1 must benefit from a lack of jurisdiction."

23.

The defendant's reply further specifies that the Contentious Chamber does not have jurisdiction over the defendant since the original complaint was not addressed to him. Under Article 2 in conjunction with Article 811 of the Judicial Code, it is furthermore impossible for the Contentious Chamber to implicate a third party.

24.

On February 27, 2024, the parties are informed that the hearing will take place on March 28, 2024.

25.

On March 28, 2024, the parties are heard by the Contentious Chamber. The complainant again presents the facts of the present case and emphasizes that he has always written to the defendant. Finally, after an injunction has already been issued by the Contentious Chamber in accordance with Article 95 of the LCA (although this was against the body shop), a report has still been transmitted to them. This had initially been refused to them due to internal directives from Z2. He concludes by stating that it is not clear whether the report obtained is indeed the correct report. The expert who was present at the time of the reading suspects that this is not the case.

During his speaking time, the defendant further specifies that there has been no manipulation of the report already transmitted and that he is also not in possession of another report (more detailed or otherwise).

Decision on the Merits 58/2024 — 7/14

He reiterates that he initially followed the directives of Z2 which prohibited him from sharing such documents with entities outside the network. Subsequently, Z2's authorization to do so was granted, after which the defendant complied with the plaintiff's request and further transmitted the reading report in November 2023. The defendant therefore does not understand why the present procedure is

being pursued if the plaintiff's request has already been satisfied.

26.

At the request of the present members, the relationship between Z2 and the defendant is discussed. The defendant acknowledges that in this case, he is the data controller but emphasizes that he nonetheless followed Z2's directives.

Finally, the president of the Contentious Chamber asks during the hearing if the body shop agrees to benefit from a dismissal. The counsel for the body shop confirms this.

27.

On April 2, 2024, the minutes of the hearing are submitted to the parties. The Contentious Chamber receives no comments from the parties regarding the minutes.

II. Rationale

28. When the Contentious Chamber refers in this decision to the "defendant," it is exclusively referring to the defendant (and thus not to the body shop).

II.1.1. Jurisdiction of the Contentious Chamber

29.

In the present case, the Contentious Chamber must note that in decision 136/2022, the wrong data controller was addressed, due to an error on the part of the Contentious Chamber, which involved contacting another company that has its own business number.

30. The Contentious Chamber must emphasize in this instance that the plaintiff's initial mediation request was indeed directed at the defendant. The plaintiff's request dated June 21, 2022, was worded as follows: "I wish for your intervention for mediation with the Z2 garage [...]."

31.

It follows that the defendant was indeed contacted in the mediation procedure. The email address used [...] is furthermore the email address that was used for the initial communications between the plaintiff and the defendant. This email address is also listed on the defendant's website. The lack of response to the mediation attempt is indeed attributable to the defendant. The subsequent conversion into a complaint also concerns the defendant.

Decision on the Merits 58/2024 — 8/14

32.

Decision 136/2022 was then sent to the body shop. Since at that time, the email address on the body shop's website was identical to that of the defendant, this error went unnoticed during the sending of the decision. It was during the first phase of conclusions that this error was brought to the attention of the Contentious Chamber. Following this, the Contentious Chamber initiated a second phase of conclusions so that the defendant would also have the opportunity to submit its conclusions to the Contentious Chamber. The invitation to the hearing was then sent to the defendant. At this hearing, the defendant was represented by the same counsel as the body shop. During the hearing, the body shop was granted a dismissal.

33. The defendant argues in its conclusions that the Contentious Chamber would not have jurisdiction over it. However, as specified above in points 30 and 31, it can be concluded that this is not accurate. The defendant is not a "third party" to the procedure, as it wrongly claims.

34. In this regard - moreover - it can also be emphasized the status of the Contentious Chamber as an administrative jurisdiction, which implies that Article 811 of the Judicial Code does not apply. Submitting a complaint file cannot therefore be considered a procedure in the sense of Article 2 of the Judicial Code. The procedure before the Contentious Chamber is a *sui generis* administrative law procedure that monitors compliance with the GDPR and therefore, "the said 'procedure' when processing a complaint before the Contentious Chamber cannot simply be compared to the procedure in a judicial proceeding."

35. Furthermore, it should be noted that no corrective measures are imposed on the body shop anymore. The initiation of the substantive procedure under Article 98 of the LCA indeed implies that decision 136/2022 is automatically replaced by the present decision on the merits. The injunction in decision 136/2022 indeed establishes that the Contentious Chamber imposes an injunction "subject to the introduction of a request by the data controller for a substantive decision in accordance with

Articles 98 et seq. of the LCA."

36. Both parties finally also request a condemnation of the other party for costs. However, the Contentious Chamber is not competent to condemn any party in the procedure for costs. Articles 95 and 100 of the LCA list exhaustively the corrective measures and sanctions that it can decide. The condemnation for costs is not among the measures listed in these articles, particularly in Article 100 of the LCA.

3 In the meantime, the body shop has its own email address, namely [...].

4 Article 811 of the Judicial Code: "Courts and tribunals cannot order the involvement of a third party ex officio."

5 Brussels (Market Court), July 7, 2021, judgment no. 2021/AR/320, NDPK nv v. APD (The Pink Box), p. 15.

Decision on the Merits 58/2024 — 9/14

applicable in the present case⁶. Furthermore, and as necessary, the Litigation Chamber adds that the Judicial Code, whose Article 1022 provides for the condemnation to costs, does not apply to the Litigation Chamber in its capacity as a contentious body of an independent administrative authority, except in cases where, as stated in Article 57 of the Internal Rules, the application of the provisions of the Judicial Code is specifically provided for. Article 100 of the LCA includes a list of the powers of the Litigation Chamber. Since the granting of compensation is not included, the Litigation Chamber cannot respond to the parties' requests in this regard.

The Litigation Chamber therefore cannot respond to the parties' request to condemn each other to costs and to impose a procedural indemnity.

The requests of both parties are rejected.

II.1.2. Admissibility of the Procedure on the Merits

37.

The complainant asserts that the procedure on the merits is not admissible, as the request for treatment on the merits in accordance with Articles 98 et seq. of the LCA was submitted late. The injunction in Decision 136/2022 indeed establishes that the Litigation Chamber imposes an injunction "subject to the submission of a request by the data controller for treatment on the merits in accordance with Articles 98 et seq. of the LCA." The decision itself does not therefore specify a deadline regarding the request for treatment on the merits.

38. In practice, the Litigation Chamber generally grants a period of thirty days to the data controller to potentially request treatment of the case on the merits. The notification of the decision dates from September 27, 2022. The request for treatment on the merits dates from October 27, 2022.

The Litigation Chamber considers that the request for treatment on the merits was not submitted late.

II.1.3. Responsibility for Processing

39. The defendant maintains in this case that it is the data controller. This is also emphasized repeatedly in the conclusions. However, in practice, it appears that the defendant is subject to directives imposed by Z2, as the latter is the holder of the franchise. The defendant would be bound by these directives and it

6 Brussels (Market Court), May 26, 2021, judgment no. 2021/AR/205, HITT bvba v. DPA, p. 34: "The Litigation Chamber does not have jurisdiction to assess the subjective rights of the parties and to reserve consequences in the context of a dispute. Only the courts and tribunals of the judiciary are authorized to do so (Article 144 of the Constitution)." [Translator's note: freely translated by the Translation Service of the Data Protection Authority, in the absence of an official translation]

Decision on the merits 58/2024 — 10/14

It is clear from practice that this is the case. The reading report in question was indeed only transmitted to the complainant after Z2 had given its authorization for this purpose.

40. The Disciplinary Chamber therefore examines whether, in this case, there is not a joint responsibility for processing. The European Data Protection Board (hereinafter EDPB) defines an important criterion for establishing joint responsibility for processing as a situation in which processing would not be possible without the participation of both parties. This implies that the processing by each party is inseparable from that of the other party or is inextricably linked. Joint participation must include

the determination of purposes, on the one hand, and the determination of means, on the other hand. The EDPB further specifies that "Thus, to assess the existence of joint controllers, it is necessary to examine whether the determination of the purposes and means that characterize a controller is decided by more than one party. The term 'jointly' should be interpreted as meaning 'together' or 'not alone', in various forms and combinations (...)."

41.

The Court of Justice has specified in this regard that "the existence of joint responsibility does not necessarily translate into equivalent responsibility, for the same processing of personal data, of the different actors. On the contrary, these actors may be involved at different stages of this processing and to different degrees, such that the level of responsibility of each of them must be assessed taking into account all relevant circumstances of the case."

42.

The Disciplinary Chamber therefore concludes that the defendant is a joint controller of processing with Z2. The defendant has some freedom to organize the processing activities themselves, but this is clearly done in consultation with Z2, which must therefore also be considered a joint controller of processing.

43. The Disciplinary Chamber addresses itself exclusively to the defendant in this procedure. The complaint indeed exclusively targets the defendant. The Disciplinary Chamber also considers that if there is indeed joint responsibility for processing, it can address both entities for these actions. This follows in particular from Guidelines 07/2020 in which the EDPB states that "Supervisory authorities are

7 Guidelines 07/2020 on the concepts of controller and processor in the GDPR, July 7, 2021, p. 3. Hereinafter: Guidelines 07/2020.

8 Guidelines 07/2020, page 21.

9 CJEU, Judgment of July 10, 2018, Tietosuojaaltuutettu v. Jehovan todistajat – uskonnollinen yhdyskunta, C-25/17, ECLI:EU:C:2018:551, paragraph 66 and CJEU, Judgment of July 29, 2019, Fashion ID GmbH & Co KG v. Verbraucherzentrale NRW, C-40/17, ECLI:EU:C:2019:629, paragraph 70.

10 Article 26 of the GDPR: "Where two or more controllers jointly determine the purposes and means of processing, they are joint controllers."

Decision on the Merits 58/2024 — 11/14

not bound by the terms of the agreement, whether regarding the issue of the quality of joint controllers of processing or the designated point of contact."¹¹

For the Contentious Chamber, it is clear that even if the defendant is a joint controller of processing, the complainant should, in principle, be able to address both companies (both Z2 and the defendant) to exercise their rights in accordance with Chapter III of the GDPR¹².

II.1.4. Complainant's Access Request

44. On June 15, 2022, the defendant was summoned by the complainant's counsel to respond to the latter's access request. The defendant reacted on June 17, 2022, but negatively. Subsequently, the mediation procedure with the Frontline Service was initiated, to which the defendant did not respond.

45. On September 26, 2022, decision 136/2022 was adopted against the body shop. This may obviously lead to some confusion, but the decision was nonetheless sent to the defendant's general email address, which implies that they could (also) have been informed of the injunction to comply with the complainant's access request. This decision mentions a compliance deadline of fourteen days.

46. Ultimately, on November 2, 2022, more than a month after the decision was sent and five months after the initial access request, a diagnostic report was sent to the complainant.

47. However, the Contentious Chamber does not take into account the fact that the defendant did not timely respond to the injunction contained in decision 136/2022, as this may indeed be due to a material error on the part of the Contentious Chamber, given that the injunction was addressed to the wrong controller of processing. However, this does not detract from the fact that the complainant's access request was, in any case, fulfilled too late and that, furthermore, there is uncertainty (without the Contentious Chamber having proof of this) regarding the adequacy of the report provided. It is still

unknown whether it contains all the personal data of the complainant that was requested and extracted.

The following can be read in the complainant's initial summary conclusions: "Furthermore, there is no certainty regarding the compliance of the data provided, and the defendants also do not fulfill the burden of proof that lies with them in this matter, attesting that this would indeed be the case. After the diagnostic report was communicated to the expert present during the expertise on behalf of the complainant, this expert noted several anomalies,

11 Guidelines 07/2020, page 5.

12 In Guidelines 07/2020, it is specified on pages 5 and 55 as follows: "Regardless of the terms of the agreement, data subjects may exercise their rights against and with respect to each of the joint controllers of processing."

Decision on the Merits 58/2024 — 12/14

as indicated in his letter dated 10/11/2022, which is attached to the complainant's file as an exhibit;" Therefore, the Contentious Chamber cannot currently ascertain with certainty whether the correct report has or has not been transmitted and whether the complainant has ultimately been able to successfully and fully exercise their right of access.

48. Due to the defendant's initial refusal to timely comply with the access request and the subsequent late exercise of this right, the Contentious Chamber finds that there has been a violation of Article 12.3 of the GDPR.

Due to the existing uncertainty regarding the accuracy of the report provided, the Contentious Chamber cannot rule on a possible violation of Article 15.3 of the GDPR.

II.2. Corrective Measures

49.

Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance with processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose fines;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another state or an international organization;

Decision on the Merits 58/2024 — 13/14

15° transmit the file to the public prosecutor of the King of Brussels, who informs of the follow-up given to the file;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

50. The Contentious Chamber has found a violation of Article 12.3 of the GDPR because the defendant initially unlawfully refused to comply with the complainant's access request.

51.

In the context of effective legal protection under Article 47 of the Charter of Fundamental Rights of the European Union and the effective application of the regulation that the legislator pursues with the GDPR, it is also appropriate to draw the defendant's attention to this point.

52.

For this reason, the Contentious Chamber finds it appropriate to reprimand the defendant for failing to timely execute the access request.